

25NNCV04389 25NNCV04389

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-11

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#17 - JESUS PALOMINO, et al. vs KIA AMERICA, INC.

Motion to Compel Plaintiffs' Depositions

The motion is denied as moot as to plaintiff Rebeka Palomino because the record states that she already appeared for deposition on July 27, 2026.

As to plaintiff Jesus Palomino, the record submitted with the opposition states that the parties agreed to a July 31, 2026 deposition date and that the deposition remained on calendar as of July 29, 2026. To the extent the deposition was completed as agreed, no further order compelling plaintiff Jesus Palomino's deposition is necessary. The motion is, therefore, denied as moot.

The request for sanctions is denied.

Motion to Compel Vehicle Inspection

Unlike the deposition motion, the vehicle inspection had not yet occurred as of the filing of the opposition, although the parties had agreed on an August 24, 2026 inspection date and defendant had already served a Second Amended Demand setting that date, time, and place.

The Court grants the motion in part for the limited purpose of enforcing the agreed inspection. Plaintiffs shall produce the subject vehicle, identified as the 2023 Kia Soul bearing VIN KNDJ53AU6P7884620, for inspection and non-destructive testing on August 24, 2026, at 2:00 p.m. at Van Nuys Kia, 6115 Van Nuys Blvd., Van Nuys, California 91401, consistent with defendant's Second Amended Demand for Production of Vehicle for Inspection and Testing, No. 1.

The request for sanctions is denied. Plaintiffs represented an intent to produce the vehicle on the noticed August 24, 2026 date and the scheduling issue was resolved after further communications between parties.

Unless waived by the parties, Defendant is to give notice.